

25SMCV02966 25SMCV02966

County: los-angeles

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Case Number: 25SMCV02966 Hearing Date: August 28, 2026 Dept: M

CASE NAME: Trinidad v. City of Culver City, et al.

CASE NO.: 25SMCV02966

MOTION: Motion to Dismiss Complaint and Cross-Complaint

HEARING DATE: 8/28/2026

LEGAL STANDARD

The instant

motion is noticed as a motion to dismiss, but the substance of the motion reveals a general demurrer. A

demurrer for sufficiency tests whether the complaint states a cause of action.

(Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering

demurrers, courts read the allegations liberally and in context. In a demurrer

proceeding, the defects must be apparent on the face of the pleading or via

proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116

Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the

evidence or other extrinsic matters. Therefore, it lies only where the defects

appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30,

430.70.) At the pleading stage, a plaintiff need only allege ultimate facts

sufficient to apprise the defendant of the factual basis for the claim against

him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer

does not, however, admit contentions, deductions or conclusions of fact or law

alleged in the pleading, or the construction of instruments pleaded, or facts

impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d

725, 732, internal citations omitted.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show¿in what manner¿plaintiff can amend the complaint, and¿how¿that amendment will change the legal effect of the pleading.¿(Id.)

ANALYSIS

Defendant/Cross-Defendant 12717

Washington Place, LLC moves to dismiss Plaintiff Yissendy Trinidad's Complaint and Defendant/Cross-Complainant City of Culver City's Cross-Complaint.

Defendant's

motion is a general demurrer based on extrinsic evidence. Defendant presents the declaration of its agents, and claims that Defendant does not own or control the property where the alleged incident occurred. The Court declines to consider the extrinsic evidence. Defendant's argument contradicts the allegations of the pleadings. The Complaint alleges that Defendant owned/controlled the subject property. (Compl., ¶¶ Prem.L-1, GN-1.) The Cross-Complaint alleges indemnification and apportionment of fault on this basis. (CC ¶¶ 7-8.) These allegations establish Defendant's ownership/control for pleading purposes.

Accordingly,

the motion is DENIED.